

Sri Manindra Das vs Smt. Riya Harijan (Das) on 13 May, 2026

Author: T.Amarnath Goud

Bench: T. Amarnath Goud

2026:THC:620-DB

TRHC010010832025

HIGH COURT OF TRIPURA

AGARTALA

F.A. 5/2025

Sri Manindra Das, son of late Thakurmani Das, resident of
Industrie, Kumarghat, P.O., P.S., Sub-Division- Kumarghat,
District- Unakoti Tripura, PIN-799064;

.... Appellant

Versus

1. Smt. Riya Harijan (Das), daughter of Smt. Gita Harijan, wife of late Amit Das, C/o Rita Shil, of Ratikroy, Sub-Division- Kumarghat, District- Unakoti, Tripura.
2. Ahana Das, daughter of late Amit Das, C/o. Rita Shil of Fatikroy, Sub-Division- Kumarghat, District- Unakoti Tripura.
(Both the Respondents Nos. 1 and 2 are minors, they will be

represented by their mother and grand-mother, Smt. Gita Harijan, W/o. Sukanta Harijan, C/o. Rita Shil of Fatikroy, Gandhibari Bazar, P.O. and P.S. Fatikroy, Sub-Division- Kumarghat, District- Unakoti Tripura, PIN-799030..

---Respondent

For the Appellant(s) : Mr. H. Deb, Advocate
For the Respondent(s) : Ms. A. Debbarma, Advocate
Date of hearing & delivery
of Judgment & Order : 13.05.2026
Whether fit for reporting : Yes / No

BEFORE

HON'BLE JUSTICE DR. T. AMARNATH GOUD

HON'BLE MR. JUSTICE S. DATTA PURKAYASTHA

JUDGMENT & ORDER(ORAL)

(Dr.T.Amarnath Goud, J)

Heard Mr. H. Deb, learned counsel appearing for the appellant. Also heard Ms. A. Debbarma, learned counsel appearing for the respondent.

2. The appellant, by means of filing the present appeal have challenged the order dated 21.02.2025, passed by the learned Judge, Family Court, Kailasahar, Unakoti, in connection with case No. Civil Misc. 14 of 2023, whereby the appellant had Page 2 been directed to pay Rs.700/- per month to the respondent no.1 and Rs.500/- per month to respondent no.2 as maintenance.

3. Precisely stated, the respondent no.1 eloped with one Amit Das, son of the appellant herein, and subsequently the got married in the year 2022 as per Hindu rites and customs at Kumarghat and thereafter started to leading her conjugal life with said Amit Das in the house of the appellant despite his objection wherein the respondent No.1 was tortured by the appellant and his wife on monetary demand and subsequently when she was pregnant, she was driven out of her matrimonial residence. Finding no other alternative, she started living in a rented house of her mother at Fatikroy and on 11.04.2023, the respondent no.2 was born but unfortunately in May, 2023, her husband, Amit Das i.e. son of the appellant herein, had expired, leading the respondents to starvation. When the respondent no.1 found that after death of her husband, the appellant had not been maintaining her and her daughter, she approached the learned Judge, Family Court, Kailasahar, by filing a petition under Section 19 of the Hindu Adoptions and Maintenance Act, 1956 claiming maintenance from the appellant being her father-in-law, for herself and her minor daughter.

4. After filing of the case the same was registered and marked as Civil Misc.14 of 2023. Summon was issued upon the parties to the lis. The appellant, being opposite party, contested the case by submitting written objection wherein he denied the allegations made therein. In the written objection, the opposite party has admitted that his son Amit Das and the respondent Page 3 no.1 herein i.e. petitioner no.1 in Civil Misc.14 of 2023, had love affairs and they got married and also admitted that he had never accepted the petitioner no.1 i.e. the respondent no.1 herein as his daughter-in-law. The appellant also stated that he is a e- rickshaw puller and an ailing person and is completely dependent on income of his wife who is a maid servant.

5. The respondent no.1 as petitioner examined herself as PW1 and her mother as PW-2. On the other hand, the appellant was examined as OPW-1. The examination of PW-1, the appellant herein, was replica to her petition under Section 19 of the Act and PW-2, reiterated the version of PW-1. OPW-1, the appellant herein in his examination and cross-examination reiterated his version to his written objection. He also admitted the marriage of his son with the respondent no.1 herein, death of his son, and also admitted that the respondent no.1 has no source of income. After hearing both the parties and evaluating the evidences, learned Judge, Family Court, Kailasahar, Unakoti, had passed the order of maintenance against the appellant herein, which is under challenge.

6. Mr. H. Deb, learned counsel appearing for the appellant has submitted that the appellant is an ailing person and e-rickshaw puller and he has no sufficient income to maintain the respondents. He has further submitted that submitted that to get the maintenance from the father-in-law i.e. the appellant, the daughter-in-law i.e. the respondent is required to prove that she does not have any source of income which she failed to prove by placing reliable and cogent evidence. He has also submitted that Page 4 considering the ailment, age and dependency, the order of maintenance be set-aside.

7. On the other hand learned counsel for the respondents has submitted that the order passed by the learned Judge, Family Court, is well-reasoned, and the same requires no interference.

8. This court has meticulously gone through the case record and the order passed by the trial court.

9. At the very outset, this Court is to observe that as per the provisions enumerated under Section 19 of the Hindu Adoptions and Maintenance Act, 1956, can a widowed daughter-in-law claim maintenance from her father-in-law if she is unable to maintain herself out of her own earnings or out of estate of her husband or her father or mother. For better appreciation, Section 19 of the Act, is reproduced here-in-below:

"19. Maintenance of widowed daughter-in-law.-- (1)A Hindu wife, whether married before or after the commencement of this Act, shall be entitled to be maintained after the death of her husband by her father-in-law:

Provided and to the extent that she is unable to maintain herself out of her own earnings or other property or, where she has no property of her own, is unable to obtain maintenance--

(a)from the estate of her husband or her father or mother, or

(b)from her son or daughter, if any, or his or her estate. (2)Any obligation under sub-section (1) shall not be enforceable if the father-in-law has not the means to do so from any coparcenary property in his possession out of which the daughter-in-law has not obtained any share, and any such obligation shall cease on the re-marriage of the daughter-in-law."

Sub-section (1) of Section 19 of the Act, purports that a Hindu wife shall be entitled to be maintained after the death of her husband by her father-in-law, if she is unable to maintain herself out of her own earning or other property or where she has no property of her own, is unable to obtain maintenance (a) from the estate of her husband or her father or mother, or (b) Page 5 from her son or daughter, if any, or his or her estate. The appellant while appeared as OPW-1 had unequivocally admitted that the respondent no.1 had no source of income and also had admitted that his son i.e. husband of the respondent no.1, had expired, also further admitted that the respondent no.1 had a sucking baby i.e. respondent no.2. OPW-1 has also admitted that he is an e-rickshaw puller which means he is earning from his profession. Thus, from the version of the appellant, it is evident that the respondent no.1 is unable to maintain herself and also barred from any maintenance from her husband since her husband had expired. It is thus clear that the entire object of Section 19(1) of the said Act is to recognize the right of a widowed daughter-in-law to receive maintenance from either of the sources mentioned therein. Maintenance is given so that the respondent no.1 alongwith her minor daughter, respondent no.2, can live in the manner, more or less, to which she was accustomed. The concept of maintenance must, therefore, include provision for food, medicine and clothing and the like and take into account the basic need of a roof over the head.

10. In our considered view, the order passed by the Court below does not suffer from any error whatsoever.

11. Accordingly, the Order dated 21.02.2025 passed in Civil Misc. 14 of 2023 is affirmed. Consequently, the appeal stands dismissed. Send down the LCRs.

S.DATTA PURKAYASTHA,J

DR.T. AMARNATH GOUD,J

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